SEVENTH DISTRICT COURT
FILED
DEC 28 2010
GRAND COUNTY
By: mb

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IN THE SEVENTH JUDICIAL DISTRICT COURT IN AND

FOR GRAND COUNTY, STATE OF UTAH

BARBARA A. MORRA; MICHAEL K. SUAREZ; JOHN S. WEISHEIT; HAROLD SHEPHERD; JENNIFER P. SPEERS; TARA COLLINS; WILLIAM LOVE; SARAH M. FIELDS; JOHN C. DOHRENWEND; PAUL JANOS; and STEVE MULLIGAN, Plaintiffs, vs. GRAND COUNTY, UTAH and the GRAND COUNTY COUNCIL, Defendants; CLOUDROCK LAND COMPANY LLC, a Utah limited liability company, Defendant-Intervenor.	**ORDER GRANTING SUMMARY JUDGMENT TO DEFENDANTS AND DENYING PLAINTIFFS' CROSS-MOTION FOR SUMMARY JUDGMENT** Case No. 070700108 Honorable Lyle R. Anderson

The Motion for Summary Judgment of Defendant-Intervenor Cloudrock Land Company LLC ("**Cloudrock**"), in which defendant Grand County ("**County**") joined, and the Cross-Motion for Summary Judgment of plaintiffs Barbara A Morra, Michael K. Suarez, John S Weisheit, Harold Shepherd, Jennifer P. Speers, Tara Collins, William Love, Sarah M. Fields, John C. Dohrewend, Paul Janos and Steve Mulligan's ("**Plaintiffs**") both came on for hearing before the Honorable Lyle R. Anderson on October 4, 2010. Michael Zimmerman and Wade Budge of Snell & Wilmer LLP appeared on behalf of Cloudrock, Todd Karl Jenson of Great West Legal, PLLC appeared on behalf of the County, and J. Craig Smith of Smith Hartvigsen, PLLC appeared on behalf of Plaintiffs.

Based upon the administrative record submitted by the County, the pleadings and memoranda filed by the parties, including supplemental memoranda and the arguments presented at the hearing, the court finds and concludes as follows:

1. The County has compiled and transmitted the record, as required by Section 801(7)(a) of the County Land Use, Development and Management Act, Utah Code Ann. §§17-27a-101, -803 ("LUDMA"), for this matter and this case may be decided on the record in accordance with Section 801(8)(a) of LUDMA .

2. The enactment of Ordinance No. 454 was a legislative act of the Grand County Council because Ordinance No. 454 is a land use ordinance, as that term is defined by LUDMA in that it approved an amendment to a planned unit development zone, which constituted a zoning amendment.

3. The enactment of Ordinance No. 454 is presumed valid under Section 801(3)(a) of LUDMA and the court concludes that the enactment of Ordinance 454 was valid under Section 801(3)(b) of LUDMA.

4. The enactment of Ordinance 454 was supported by substantial evidence in the record and there is no evidence to support any contention that the enactment of Ordinance 454 was not reasonably debatable.

5. Plaintiffs did not preserve many of their arguments regarding the alleged illegality of the approval of Ordinance No. 454 because they failed to bring them to the attention of the Grand County Council before the enactment of Ordinance 454. With respect to the two issues that Plaintiffs did preserve, the Court finds them to be without merit.

6. Plaintiffs have failed to produce any record or other evidence that the decision to enact Ordinance No. 454 was illegal and that they were prejudiced or injured in any way by any technical deficiency in the process leading to the enactment of Ordinance No. 454.

Based upon the foregoing and the ruling made from the bench on October 4, 2010 and the Ruling issued by the court dated October 28, 2010,

IT IS HEREBY ORDERED as follows:

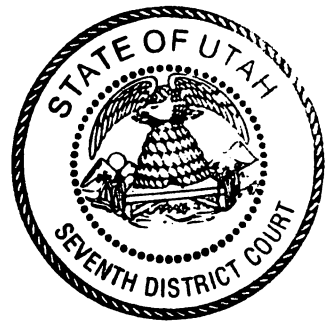
1. Cloudrock's Motion for Summary Judgment is ***granted***;

2. Plaintiffs' Cross-Motion for Summary Judgment is ***denied;***

3. Each party is to bear their own costs and fees; and

4. This order constitutes a final judgment according to Rule 54 of the Utah Rules of Civil Procedure.

ENTERED this 20th day of December, 2010.



BY THE COURT:

HONORABLE LYLE R. ANDERSON
SEVENTH JUDICIAL DISTRICT COURT

Signed after reviewing and considering plaintiffs' objections.

APPROVED AS TO FORM:

GREAT WEST LEGAL, PLLC

Todd Karl Jenson
Attorneys for Defendants Grand County and Grand County Council

SMITH HARTVIGSEN, PLLC

J. Craig Smith
Christopher Preston
Attorneys for Plaintiffs

ENTERED this _____ day of _____, 2010.

BY THE COURT:

_____
HONORABLE LYLE R. ANDERSON
SEVENTH JUDICIAL DISTRICT COURT

APPROVED AS TO FORM:

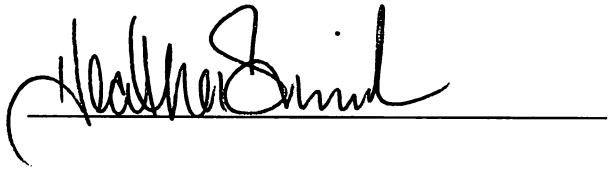
GREAT WEST LEGAL, PLLC

Todd Karl Jenson
Attorneys for Defendants Grand County and Grand County Council

SMITH HARTVIGSEN, PLLC

_____
J. Craig Smith
Christopher Preston
Attorneys for Plaintiffs

CERTIFICATE OF SERVICE

Pursuant to Rule 7(f)(2) of the Utah Rules of Civil Procedure, I hereby certify that I caused a true and accurate copy of the foregoing **ORDER GRANTING SUMMARY JUDGMENT TO DEFENDANTS AND DENYING PLAINTIFFS' CROSS-MOTION FOR SUMMARY JUDGMENT**, to be served, by the method indicated below, on this 18th day of November, 2010, to the following:

J. Craig Smith, Esq. SMITH HARTVIGSEN, PLLC 175 South Main Street, Ste 300 Salt Lake City, UT 84111 *Attorneys for Plaintiffs*	☒ Hand Delivery ☐ Facsimile ☐ U.S. Mail
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Happy J. Morgan, Esq. GRAND COUNTY ATTORNEY 125 E. Center Street Moab, UT 84532 *Attorneys for Grand County, Utah*	☐ Hand Delivery ☐ Facsimile ☒ U.S. Mail